

HOUSE No. 2331

The Commonwealth of Massachusetts

PRESENTED BY:

Aaron L. Saunders

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act allowing municipalities to reasonably regulate solar siting.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Aaron L. Saunders</i>	<i>7th Hampden</i>	<i>1/16/2025</i>

HOUSE No. 2331

By Representative Saunders of Belchertown, a petition (accompanied by bill, House, No. 2331) of Aaron L. Saunders relative to zoning ordinances for the regulation of the installation of solar energy systems. Municipalities and Regional Government.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act allowing municipalities to reasonably regulate solar siting.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 3 of chapter 40A of the General Laws, as appearing in the 2020 Official Edition,
2 is hereby amended by striking out the ninth paragraph, in lines 123 to 126, inclusive, and
3 inserting in place thereof the following paragraph:-

4 No zoning ordinance or by-law shall prohibit or unreasonably regulate the installation of
5 solar energy systems or the building of structures that facilitate the collection of solar energy for
6 residential purposes except where necessary to protect the public health, safety or welfare.

7 Commercial, governmental, and non-residential solar energy structures and systems may be
8 reasonably regulated for purposes of (i) protecting public health, safety and welfare; (ii)

9 preserving forested lands, agricultural lands, or wetlands; or (iii) ensuring compatibility with

10 municipal zoning.